

HOUSE No. 5507

The Commonwealth of Massachusetts

PRESENTED BY:

John Barrett, III

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the Adams Fire District to allow firefighters to continue to serve past the age of 65.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>6/2/2026</i>

HOUSE No. 5507

By Representative Barrett of North Adams, a petition (subject to Joint Rule 12) of John Barrett, III relative to authorizing the firefighters of the Adams Fire District to continue service past the age of 65. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Adams Fire District to allow firefighters to continue to serve past the age of 65.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, call
2 firefighters, volunteer firefighters and fire engineers of the Adams fire district who would be
3 subject to mandatory retirement on the last day of the month in which they turn 65 years old,
4 and, if a member of the retirement system, would be retired for superannuation, may serve in
5 such position until the age of 70, until the date of retirement or non-reappointment, whichever
6 occurs first; provided, however, that said firefighter or fire engineer is mentally and physically
7 capable of performing the duties of the position. The Adams fire district may, at the employee's
8 expense, require that the employee be examined by an impartial physician, acceptable to the fire
9 district, to determine the firefighter or fire engineer's fitness to remain in service.

10 (b) No deductions shall be made from the regular compensation of said call firefighters,
11 volunteer firefighters and fire engineers pursuant to chapter 32 of the General Laws for any
12 service performed by such firefighters or fire engineers subsequent to reaching the age of 65 for

13 retirement or pension purposes. Upon retirement pursuant to this act of a firefighter or fire
14 engineer over the age of 65, they shall receive a superannuation retirement allowance equal to
15 that which they would have been entitled had they retired at the age of 65.

16 SECTION 2. This act shall take effect upon its passage.